

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

March 6, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:05 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Dicky Shanor, and Jeff White. Absent: Rocky Case and Mike Luna. Also present were: Kylie Soden, Deputy City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney, Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding wages, salaries, or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. She stated that spokespersons for the City are herself and Dicky Shanor, and Jonathan Bertsch and Andrew Dykeshorn are the spokespersons for the Union. She noted that any collective labor agreement that may be reached must be approved by the governing body with the agreement placed on the city council agenda for approval.

Mayor Orr stated that the City would be reviewing revisions to the following sections: Section 2, Definitions; Section 13, Management Rights; Section 15, Company Strength; Section 17, Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 24, Working in a Higher Job Rank (further clarification needed from the Union at some point); Section 27, Wellness/Fitness Program; Section 33, Uniforms, and Section 46, Wildland. Mr. Johnson moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:13 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:19 p.m. Mr. Shanor reiterated that the City’s priorities are overtime predictability, management rights and sustainability of the service structure. Mr. Shanor presented the City’s counteroffer on the following sections, or portions thereof: Section 13, Management Rights; Section 15, Company Strength; Section 17, Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 23, Overtime; Section 27, Wellness/Fitness Program; Section 33, Uniforms; Section 46, Wildland, and Section 47, Labor/Management Relations. He noted the City has no objections to the Union’s proposals for Section 2, Definitions, and Section 28, Vacations, and requested

clarification of wording contained in Section 20, Inclement Weather Conditions, and Section 24, Working in a Higher Job Rank. Upon inquiry, Mr. Shanor explained the City wishes to strike the Union's proposed "Education Reimbursement" language in Section 22 in its entirety. Mr. Bertsch posed questions relative to how the City predicts overtime, prediction of overtime for the upcoming year, and whether the City anticipates distribution changes or cuts in state funding. He discussed non-uniform vs. Union employee raises during the last three years. Mayor Orr advised there have been financial and administrative changes recently, and that the City is looking at a significant loss in sales tax revenue. Mayor Orr recessed the meeting at 7:37 p.m. to allow Union representatives to caucus, and Dr. Rinne moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 7:40 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:17 p.m. Mayor Orr addressed the questions that were presented by Mr. Bertsch prior to executive session. She advised overtime is predicted by a review of overtime costs in prior years, analyzing data and discussions with the Fire Chief; noted overtime costs for 2014, 2015 and 2016, and stated overtime is anticipated to exceed \$500,000 this year. Mayor Orr indicated the City would like to see predictability in overtime budgeting moving forward, and explained the City won't know of any loss in state funding until the legislative session next year, however, sales tax revenues to date are more than \$900,000 below projection. The City provided a handout referred to as the "\$20/hour Analysis" (on file with the City Clerk's office) which contained information on pay raises since 2002 for uniformed and non-uniformed City employees. It was noted that the handout does not include specialty pay, sick leave bonuses, etc. that are contained in the agreement that aren't available to other City employees. Mr. Bertsch presented and explained the Union's counteroffers on the following sections, or portions thereof: Section 13, Management Rights; Section 15, Company Strength; Section 17, Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 23, Overtime; Section 27, Wellness/Fitness Program, and Section 33, Uniforms. He advised there would be a minor modification to Section 24, Working in a Higher Job Rank, presented at the next special meeting.

Mayor Orr stated the next special meeting would be held on March 8, 2017. She stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 8:32 p.m.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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